Administrative
Review Tribunal

14 August 2026

FOI ref: 2026/1839

Vida Reid

By email: legal@ffg.net.au

Dear Mrs Reid,

Notice of Decision for Freedom of Information Request no. 2026/1839

The purpose of this letter is to give you a decision about access to documents that you have requested under the *Freedom of Information Act 1982* (FOI Act).

Summary

I am an officer authorised under section 23(1) of the FOI Act to make decisions in relation to FOI requests.

You lodged an FOI request on 18 July 2026 for access to:

> *"Date: for the period 1 May 2023 to date of this request*
> *1. Any file notes, case management records, or registry records relating to the handling, allocation, and scheduling of both matters.*
> *2. Any correspondence between the Tribunal and NDIS, including the Australian Government Solicitor (AGS), concerning both matters.*
> *3. Any status reports, escalation notes, case listing records, or internal reviews referring to the progress of matters 2023/3361 (Vida Reid) and 2023 4494 (Forward Focused Group Pty Ltd)."*

I have interpreted point 1 of your request to include any file notes, case management records, or registry records relating to the handling, allocation, and scheduling of matters 2023/3361 and 2023/4494.

For point 2 of your request, I have interpreted this as any correspondence received from the respondent, being the Commissioner of the NDIS Quality and Safeguards Commission, including the Australian Government Solicitor (AGS) and correspondence sent by the Tribunal to the respondent including the Australian Government Solicitor.

For point 3 of your request, I have interpreted this to include any status reports, escalation notes, case listing records, or internal reviews which refers to the case progression of matters 2023/3361 and 2023/4494.

To locate any documents referring to points 1, 2 and 3 of your request, I have accessed the electronic case management system for matters 2023/3361 and 2023/4494. Additionally, I

consulted with the national listings team to locate any documents regarding point 3 of your request.

As a result, I have identified the 15 documents to be in-scope of your request:

1. Respondent submissions for case 2023/3361
2. Received administrative documents for case 2023/3361
3. External emails to respondent for case 2023/3361
4. File notes and internal emails for case 2023/3361
5. Respondent submissions for case 2023/4494
6. Received administrative documents for case 2023/4494
7. External emails to respondent for case 2023/4494
8. Files notes and internal emails for case 2023/4494
9. Tactical Intelligence Report – Project Archer
10. Index – Confidential Tribunal Documents
11. T-documents for case 2023/3361
12. T-documents for case 2023/4494
13. Constitution report
14. Listings report
15. Emails from national listings team

Decision

I have decided to:

- Grant partial access to documents 1, 2, 3, 4, 5, 6, 7, 8, 13, 14, and 15.
- Refuse access to documents 9 and 10
- Grant full access to documents 11 and 12

The attached Schedule of Documents provides a summary of my decision in relation to each document.

In making my decision, I have taken the following into account:

- the content of the documents that fall within the scope of your request;
- the FOI Act, specifically sections 11, 22, 42, 46, 47E(c), 47E(d), 47F,
- the guidelines issued by the Australian Information Commissioner under section 93A of the FOI Act (**FOI Guidelines**).

Reasons for decision

<u>Section 42 – Legal Professional Privilege</u>

Section 42 of the FOI Act provides that a document is exempt if it would be privileged from production in legal proceedings on the ground of legal professional privilege.

In deciding whether privilege applies, I have considered the common law elements of legal professional privilege, including the dominant purpose of the communication, the lawyer-client relationship, confidentiality and whether privilege has been waived.

Parts of document set 2 contain submissions from AGS containing legal advice given by the respondent's internal legal team in relation to a notice of intention to issue a banning order and the issuing of a banning order against Simon Reid. I am therefore satisfied that the dominant purpose of these documents is to obtain legal advice.

Lawyer-client relationship

The team handling the banning order acted as the client in which advise was given to by the respondent's legal team. The advice addresses legal considerations regarding the banning order and is not administrative in nature. I am therefore satisfied that a lawyer client relationship exists.

Confidentiality of the communications

The communications were created, received and circulated on a confidential basis within the respondent's teams, the AGS and the Tribunal. Access to the documents was limited to a small group of staff responsible for preparing or coordinating instructions for legal advice, the AGS in preparing the submissions, and the Tribunal for the purposes of preparing and conducting a review. The AGS have also requested an order of confidentially regarding the relevant documents which demonstrates the ongoing requirement of confidentiality. I am therefore satisfied that privilege has not been waived.

Based on my review of the documents, I am satisfied that:

- The respondent team handling the banning order were acting in the capacity of the client in receiving the legal advice;
- The dominant purpose of all communications was to obtain legal advice;
- The communications were created, received and handled on a confidential basis by the respondent and AGS;
- Confidentiality has been maintained and has not been waived.

For these reasons, I am satisfied that all the documents attract legal professional privilege and fall within the exemption in section 42 of the FOI Act.

<u>Section 46 – Disclosure is contrary to an order or direction given by a Tribunal</u>

Section 46 of the FOI Act provides that a document is an exempt document if public disclosure of the document would be contrary to a direction given by a Tribunal having the power to take evidence on oath. The Administrative Review Tribunal and the former Administrative Appeals Tribunal are such Tribunals.

The Tribunal order dated 12 September 2023 orders that:

1. Pursuant to section 35 of the Administrative Appeals Tribunal Act 1975 (Cth) (AAT Act) and until further order, the documents required to be provided by the Respondent under section 37(1) of the AAT Act must not be published to other than the parties, their representatives, and members of the Tribunal and staff of the Tribunal, and any person performing services for the Tribunal acting in the course of their duties.

2. Pursuant to section 37(1AE) of the AAT Act and until further order, by reason of current criminal proceedings and/or legal professional privilege, the Respondent is not required to give to the Applicants a copy of the documents filed with the Tribunal pursuant to section 37(1) of the AAT Act in the bundle marked 'Index – Confidential Tribunal Documents'.

In the absence of a further order instructing the release of the bundle marked 'Index – Confidential Tribunal Documents', I am therefore refusing access to this document bundle.

Additionally, the Tribunal order dated 26 July 2024 orders that:

1. Pursuant to section 37(1AE) of the AAT Act, and until further order, the Respondent is not required to give to the Applicants a copy of the document filed with the Tribunal pursuant to section 37(1) of the AAT Act intituled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022, because disclosure of the document would identify internal investigative processes which could prejudice future investigations.

2. Pursuant to section 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), and until further order, the document intituled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022 must not be published or disclosed to other than members of the Tribunal and staff of the Tribunal acting in the course of their duties.

In accordance with the Tribunal order, I have refused access to document set 9, Tactical Intelligence Report – Project Archer.

Section 47E(c) - Public interest conditional exemptions - certain operations of agencies

Section 47E(c) provides that a document is conditionally exempt if its disclosure would, or could reasonably be expected to, have a substantial adverse effect on the management of personnel by an agency.

Contained within document sets 2, 3, 4, 6, 7, 8, 13 and 15 are the full names of Tribunal staff members. Release of this information could reasonably be expected to identify those persons and create a risk that the persons could be targeted by unsolicited contact outside of the Tribunal's official communication channels. In the interest of promoting workplace health and safety, the Tribunal has developed a human resources policy to not release full names of staff members in any external outgoing correspondence. For this reason, I find that full names of Tribunal staff members are conditionally exempt under section 47E(c) as disclosure would have a substantial adverse effect on the management of Tribunal personnel.

Public interest – Section 11A(5) of the FOI Act

As the information is conditionally exempt, I have considered whether access to the information would, on balance, be contrary to the public interest having regard to the FOI Guidelines. While the objects of the FOI Act include full transparency and accountability, I do not consider that this object is diminished with the exempting of staff members' last names. Staff members are easily identifiable by first names and titles should this be required. I do not consider that releasing staff members' last names to the world at large will inform any public debate nor promote increased effective oversight of public expenditure.

Conversely, a significant factor against disclosure is that disclosure could reasonably be expected to prejudice staff members' right to privacy and safety and interfere with a human resources policy to maintain workplace health and safety by not publicly disclosing the full names of staff members. On balance, I consider that the workplace health and safety of Tribunal personnel must be given greater weight. Therefore, I find that disclosure of the information would be contrary to the public interest under section 11A(5) of the FOI Act.

Section 47E(d) - Public interest conditional exemptions - certain operations of agencies

Section 47E(d) provides that a document is conditionally exempt if its disclosure would, or could reasonably be expected to, have a substantial adverse effect on the proper and efficient conduct of the operations of an agency.

Direct contact details of Tribunal staff

In various parts of document sets 2, 3, 4, 6, 7, 8, 13 and 15 are the direct telephone numbers and email addresses of Tribunal staff members which do not appear to have been previously disclosed. The Tribunal has public access contact arrangements including email addresses and telephone numbers to ensure the efficient and responsive handling of public contacts. The release of direct telephone numbers and email addresses of individual staff members may result in public contact being made through channels that are not consistently monitored, causing delays in responses. Owing to the timeframes applicable to certain Tribunal cases, this could result in hardship to members of the public and have a substantial adverse effect on the Tribunal's capacity to efficiently deliver its services if contacts do not reach the officers responsible for handling them. For this reason, I find that the information is conditionally exempt under section 47E(d).

Public interest – Section 11A(5) of the FOI Act

As the information is conditionally exempt, I have considered whether access to the information would, on balance, be contrary to the public interest having regard to the FOI Guidelines. While a relevant public interest factor which favours disclosure is the promotion of the objects of the FOI Act, through facilitating and promoting public access to information held by Government, release of the information does not add to the public scrutiny of government functions. A relevant public interest factor against disclosure is that use of the information could critically delay the access of members of the public to the services of the Tribunal. On balance, I consider that the benefit of efficient handling of public contact by the Tribunal must be given greater weight. I therefore find that disclosure of the information would be contrary to the public interest under section 11A(5) of the FOI Act.

Internal group email addresses

Parts of document set 15 contain email addresses used internally to facilitate communications between staff members, ensuring that matters were accurately directed to the appropriate team. The email addresses were not publicly known, nor were they intended for public use, as it served an operational purpose in streamlining workflows and maintaining efficiency in the Tribunal's processing of matters. Disclosing the email addresses could lead to external interference, including misuse or an influx of unsolicited enquiries, which could disrupt internal processes and delay the agency's ability to manage relevant matters. Further, there is a risk of strictly time limited correspondence being misdirected to the incorrect mailbox, this could thwart an applicant's right to procedural fairness if it is missed because it was sent to an incorrect mailbox. I am satisfied that the disclosure of the internal email addresses would substantially and adversely affect the Tribunals' operations and are exempt under section 47E(d).

Public interest – Section 11A(5) of the FOI Act

Where documents are conditionally exempt, section 11A(5) of the FOI Act requires me to consider whether, on balance, disclosure of the documents would be contrary to the public interest. In doing so, I have considered the factors set out in section 11B(3) of the FOI Act. While there is a public interest in promoting the objects of the FOI Act which include increased

scrutiny and review of Government's activities, I do not believe release of the email address would enhance or promote public scrutiny. Release of this information would not inform debate on any matter or promote public oversight of public expenditure and the deleted material is not the applicant's personal information. In my view, disclosure of this information would be contrary to the public interest given the significant adverse impact it could reasonably be expected to have on the proper and efficient operations of the Tribunal.

Section 47F - Public interest conditional exemptions - personal privacy

Section 47F of the FOI Act provides that a document is conditionally exempt if its disclosure would involve the unreasonable disclosure of personal information about any person. The FOI Act shares the same definition of 'personal information' as the Privacy Act 1988, which regulates the handling of personal information about individuals (section 4(1) of the FOI Act; section 6 of the Privacy Act) which states that personal information means information or an opinion about an identified individual, or an individual who is reasonably identifiable.

Personal information means information or an opinion about an identified individual, or an individual who is reasonably identifiable. This may include a person's name, address, telephone number, date of birth, medical records, bank account details, taxation information and signatures [FOI Guidelines at 6.124-6.125].

I have reviewed the documents within scope of your request and have determined that the documents contain personal information, including direct contact details of respondent staff and AGS staff which are not previously released.

The document sets 2, 4 and 15 contain personal information of another person. In determining whether disclosure of this information would be unreasonable, I have had regard to the following matters:

- the extent to which the information is well known;
- whether the person to whom the information relates is known to be (or to have been) associated with the matters dealt with in the documents;
- the availability of the information from publicly accessible sources; and
- any other relevant matters.

I find that disclosure of the personal information outlined above would be unreasonable because this information is that of other persons. The Tribunal has obligations to maintain the confidentiality of this information because the information is not well- known or readily available from publicly accessible sources. The individuals who own this information would have a reasonable expectation that their right to privacy be respected and that their personal information is not disseminated to other parties. Therefore, I find that the information is conditionally exempt under section 47F of the FOI Act.

Public interest – Section 11A(5) of the FOI Act

Having considered the relevance of the public interest factors, including those in section 11B and the guidelines issued by the Information Commissioner, I find that disclosure of this information would, on balance, be contrary to the public interest because it is information of a kind which a person would reasonably wish to have withheld.

Whilst disclosure of information promotes the objects of the FOI Act through facilitating public access to information held by government agencies, this would not include information which could reasonably be expected to prejudice the protection of the individual's right to privacy.

Section 22

As permitted by section 22 of the FOI Act, redactions have been made to the documents which I have found to be partially exempt in order to remove the exempt material. The edited copies of these documents have been released to you.

Additionally, I have removed irrelevant material on the following basis:

- Automatically generated system notes on document sets 1, 2, 3, 4, 5, 6, 7 and 8;
- Universal Resource Locators (URLs) for links accessible via the case management system for document sets 1 and 5;
- Documents names for an unrelated matter in document set 2'
- Information regarding unrelated matters showing in the listings and constitution reports (documents 13 and 14).

Note: some documents including document sets 11 and 12 were provided to the Tribunal by other sources with redactions. The Tribunal has no power to remove these redactions.

Your review rights

Information about how you can apply for a review of this decision or complain about how we have dealt with this matter is set out in the attached fact sheet, FOI 2.

If you have any questions about this decision, please contact me at foi@art.gov.au.

Yours sincerely,

Nikko D

Authorised FOI Officer (APS6)

Attachments
FOI 2 – Information about reviews and complaints under the Freedom of Information Act

Information about reviews and complaints under the Freedom of Information Act

What should I do prior to applying for internal review or contacting the Office of the Australian Information Commissioner?

Before you apply for an internal review or contact the Office of the Australian Information Commissioner, we recommend that you telephone the officer who made the FOI decision. It is often possible to resolve concerns or answer your questions using this approach and, if not, the officer will be able to assist you in applying for review.

How do I apply for internal review to the ART?

You can apply to us for an internal review of the FOI decision. The application for internal review must be made within 30 days or such further period as we allow, after the day the decision is notified to you. To apply for an internal review you must do so in writing. You may also wish to explain why you are not satisfied with the decision. A different and more senior officer authorised under the *Freedom of Information Act 1982* (the FOI Act) will conduct the internal review and make a new decision within 30 days after receipt of your application.

If you have already applied for internal review and want to seek a further review of that decision, you will need to apply to the Australian Information Commissioner.

How do I apply for review to the Australian Information Commissioner?

You may also apply directly to the Australian Information Commissioner for review of the FOI decision. The application for review must be made within 60 days after the day notice of the decision was given. An application for review must be in writing, include details of how notices in relation to the review are to be sent to you and include a copy of the decision. You may also wish to explain why you are not satisfied with the decision. An online application form is available on the Office of the Australian Information Commissioner's website found here: Information Commissioner Review Application form.

What if I want to make a complaint about the handling of a Freedom of Information request?

If you have a complaint about the way in which we have processed your request for access under the FOI Act you can ask the Australian Information Commissioner to investigate. An online complaint form is available on the Office of the Australian Information Commissioner's website, found here FOI Complaint Form.

Where can I find further information or contact details for the Office of the Australian Information Commissioner?

Further information is available on the Office of the Australian Information Commissioner's website at www.oaic.gov.au and you can contact the office on 1300 363 992 or by email at enquiries@oaic.gov.au.